

Court No. - 5

Case :- WRIT - C No. - 3871 of 2022

Petitioner :- Aksha Azeem And Another

Respondent :- State Of U.P. Thru. Its Prin. Secy.
Deptt. Of Energy, Civil Sectr. Lko. And Others

Counsel for Petitioner :- Syed Waqar
Husain, Abdul Wazay, Salman Abbas

Counsel for Respondent :- C.S.C., Aprajita
Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Om Prakash Tripathi, J.

Heard Shri Salman Abbas, learned counsel for the petitioner, learned Standing Counsel for State and Shri Karan Agarwal appearing on behalf of opposite party nos. 2 & 3.

This petition has been filed by the petitioner praying for a direction be issued to opposite party nos. 2 & 3 to give a new electricity connection in the name of petitioner no. 1 in the house of petitioners i.e. Plot No. 64, Khasra No. 778, Harihar Nagar, P.S.- Ghazipur, Lucknow.

It has been submitted by learned counsel for the petitioner that the petitioner had married with opposite party no. 4 and out of their wedlock, petitioner no. 2 was born. There are several litigation between the parties, which are pending in various courts. Opposite party no. 2 is residing in a different place with his mistress. The petitioner's husband had earlier bought the aforesaid house from one Harshit Chaudhary electricity connection continued in the name of Harshit Chaudhary for a long time. The husband of the petitioner moved an application to the opposite party nos. 2 & 3 for permanent disconnection of the said electricity connection only to harass the petitioner. The petitioner had approached the opposite party nos. 2 & 3 to give a fresh electricity connection in her name but despite direction issued by the District Judge, Lucknow in Misc. Civil No. 79/2022 Aksha Azeem Vs. Asim Khan dated 13.05.2022, she has not been given any electricity connection and is being

forced to live in the house without electricity in this heat of this summer.

Learned counsel appearing on behalf of opposite party nos. 2 & 3 has pointed that from the order of the District Judge, Lucknow that a direction was issued only for private respondent no. 4 not to interfere in the peaceful possession of the petitioner's house during the pendency of regular suit.

It has been submitted by learned counsel for opposite party nos. 2 & 3 that as per paragraph 4.2 of the Electricity Supply Code, the petitioner not being the owner of the house in question has to be give an Indemnity Bond for her case to be considered for grant of fresh electric connection in her house.

It is submitted by learned counsel for opposite party nos. 2 & 3 that in the light of the judgment rendered in the case of *Seema Mansoor Vs. U.P. Power Corporation Ltd. and others* in Writ C No. 28295/2014 decided on 26.05.2014 by this Court, the opposite party are not asking for NOC from the recorded owner of the house but the petitioner would still have to given Indemnity Bond of the Electricity Supply Code.

Learned counsel for petitioner submitted that petitioner no. 1 shall give Indemnity Bond within one week from today and complete all formalities.

Opposite party no. 2 shall consider the grant of fresh electricity connection in the name of petitioner no. 1 within a period of two weeks thereafter.

This writ petition is disposed of.

Order Date :- 29.6.2022

Sharad/-